

Court No. - 40

Case :- WRIT - C No. - 10743 of 2023

Petitioner :- Mushahid

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Singh

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Petitioner is before this Court for a direction to quash the impugned Electricity Bill dated 30.08.2022 issued by the Respondent No. 3 and for a further direction to the Respondent No. 3 to decide the representation dated 06.01.2023 within stipulated time.

It has been averred in the writ petition that the petitioner had taken Electricity connection on 04.02.2015 being Connection No. 003010, Meter No. 30027920 to run 'Atta Chakki' in village-Laloo Nagla, Kothi under the Sub-Division-EDSD-VI, Kothi Khidamdapur under the Electricity Distribution Division-II, Amroha. Due to personal difficulty, petitioner had requested to the official of the concerned Electricity Department for permanent disconnection of the Electricity supply which was permanently disconnected on 05.03.2018 after paying electricity dues of Rs. 50,000/-. Thereafter, the petitioner came to knowledge that even after completing formalities of permanent disconnection and even after paying the dues, the Electric Bills of Rs. 6,29,783.99/- as arrears was issued by respondent no.3 on 30.08.2022. Aggrieved with the same the petitioner moved a representation dated 06.01.2023 through registered post before Respondent No. 3 requesting him to enquire into the matter and recall/cancel the impugned bill dated 30.08.2022 but till date no action has been taken by Respondent No. 3 on the representation of the petitioner dated 06.01.2023.

Considering the facts and circumstances of the case, without advertng into the merits of the case, we leave it open to the petitioner to move an objection in terms of Rule 6.5 of Electricity Supply Code, 2005 before Respondent No. 3. In case such an objection/claim is set-up by the petitioner before Respondent No. 3 under Rule 6.5 of Electricity Supply Code, 2005, we hope and trust that the same shall be considered and decided strictly in accordance with law by the Respondent No. 3, Executive

Engineer, Electricity Distribution Division-II, Amroha.

This order has been passed with the assistance of Sri Pranjal Mehrotra, learned counsel for the contesting Power Corporation.

Order Date :- 3.4.2023

A. Mandhani